

Discovery Law & Motion

22. 9:01 AM CASE NUMBER: C24-02254

CASE NAME: LAURENCE GURRIES VS. LASSEN CANYON NURSERY, INC.

***HEARING ON MOTION FOR DISCOVERY ENFORCE DEPOSITION SUBPOENA TO VERIZON WIRELESS SERVICES, LLC FOR PRODUCTION OF DOCUMENTS**

FILED BY: LASSEN CANYON NURSERY, INC.

TENTATIVE RULING:

Summary

Defendants Lassen Canyon Nursery Inc. and Nancy Jimenez (“Defendants”) Motion to Enforce Deposition Subpoena to Verizon Wireless Services LLC for the Production of Documents is **granted** on the condition that Defendants can submit a proof of service showing that the agents for service of process for Verizon were properly served with this Motion and the accompanying papers.

Background

This litigation concerns a traffic accident which occurred on March 9, 2023 near the Benecia Bridge toll plaza on northbound I-680 in Martinez, California. An F-150 pickup truck driven by Defendant Nancy Jimenez collided with a semi tractor-trailer driven by plaintiff Laurence Gerald Gurries. Plaintiff claims he was injured and filed a personal injury action against the defendants.

Defendants served a Deposition Subpoena to Verizon Wireless Services LLS for the production of cellular phone / mobile phone records relevant to the incident. Plaintiff Laurence Gurries (“Plaintiff”) objected to the subpoena and announced that it would file a motion to quash the subpoena.

Analyses

Scope of Discovery

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act affords litigants the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. Generally, any party may obtain discovery regarding any non-privileged matter that is relevant to the subject matter of the pending action or to the determination of any motion made in that action, provided the matter is either admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc., supra*, 148 Cal.App.4th at 402.

Conversely, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). In exercising its discretion regarding discovery motions, the trial court relies on the Civil Discovery Act and the legislative intent to avoid surprise and prevent the fabrication of evidence at trial. *Glenfed Dev. Corp. v Superior Court* (1997) 53 Cal.App.4th 1113, 1119. The principles of eliminating gamesmanship in California discovery practice have been established for over sixty years. The California Supreme Court’s decision in *Greyhound Corp. v Superior Court* (1961) 56 Cal.2d 355, 376, remains applicable: the Legislature

intended to remove the "game" element from trial preparation while preserving the adversary nature of the trial itself. A principal purpose of discovery is to eliminate "the sporting theory of litigation—namely, surprise at the trial." *Chronicle Pub. Co. v. Superior Court*, (1960) 54 Cal.2d 548, 561. See also page 572 of the same opinion, wherein the Court adopted the language from *United States v. Proctor & Gamble Co.*, (1958) 356 U.S. 677, noting that discovery serves to make a trial "less a game of blindman's buff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent."

The Court finds that Defendants deposition subpoena and the accompanying request for production of documents are relevant, as the items are reasonably calculated to lead to the discovery of admissible evidence. Plaintiff has waived privacy in his mobile phone records for the date of the accident by filing this lawsuit. The party seeking the constitutionally protected information has the burden to establish direct relevance. *Davis v. Sup. Ct.* (1992) 7 Cal. app. 4th 1008, 1017 (internal citations omitted). On the other hand, courts place the burden on the party asserting a privacy interest to establish the extent and seriousness of the alleged invasion and must weigh the countervailing interests of the opposing party identifies. *Williams v. Sup. Ct.* (2017) 3 Cal. 5th 531, 557.

Here, the Court concludes that plaintiff's cell phone records are directly relevant to the affirmative defense of comparative negligence. The records are relevant as to whether plaintiff was texting or on the call before or during the accident, and whether plaintiff was comparatively negligent. Such records are reasonably calculated to lead to the discovery of admissible evidence. Plaintiff's privacy interest does not outweigh the countervailing interests of discovery on the issue of comparative negligence.

Based on the foregoing, the Court finds good cause to grant Defendants' Motion.

Ruling

1. Defendants' Motion is granted on the condition that Compex can demonstrate that it served the agent for service of process for Verizon. This condition may be satisfied by the filing of a proof of service form no later than five (5) days from the date of this hearing.
2. The Court will execute the proposed order lodged by Defendants' counsel on December 23, 2025, attaching a copy of this tentative ruling.

23. 9:01 AM CASE NUMBER: C25-01656

CASE NAME: MARY O'BRIEN VS. JOHN ROGERS

***HEARING ON MOTION FOR DISCOVERY COMPEL SUPPLEMENTED DISCOVERY RESPONSES**

FILED BY: ROGERS, JOHN

TENTATIVE RULING:

This hearing was vacated by the moving party. No appearance is required on May 6, 2026.